



CHAPTER cxlv.

An Act to confirm and give effect to an indenture between the Llanelly Harbour Trust the urban district council of Llanelly and the Governor and Company of the Bank of England to amend the Llanelly Harbour Act 1904 and for other purposes.

A.D. 1910.

[28th November 1910.]

WHEREAS under the local and personal Act 47 George III. session 2 chapter cvii. (in this Act called "the Act of 1807") commonable lands and waste grounds in the parish of Llanelly were enclosed and certain of them (in this Act called "the public estates") were allotted to and vested in Trustees by that Act constituted who were thereby authorised to lease the same and to raise money on the security of the rents and profits thereof and to apply all money so raised in (among other things) the improvement of the town and port of Llanelly or of the public estates and to apply the residue of the said rents and profits (in this Act called "the income of the public estates") after payment thereof of the annual charges payable in respect of the moneys so raised and of the costs charges and expenses of the said Trustees in the improvement of the said town and port:

And whereas by the local and personal Act 53 George III. chapter clxxxiii. certain commissioners were constituted and empowered to improve deepen widen and maintain the navigation of the Rivers Burry Loughor and Lliedi and to light and buoy the same and for those purposes to levy dues on shipping and goods and borrow money and their powers were extended by Acts passed in the years 1843 and 1858:

And whereas by a Provisional Order made under the Public Health Act 1848 and confirmed by the Public Health Supplemental Act 1850 (No. 3) the borough of Llanelly as therein

A.D. 1910. defined was constituted a district under the Public Health Act 1848 and the public estates were transferred to and vested in the local board of health for the said district (in this Act called "the local board") upon the trusts thereof declared and with and subject to the rights powers authorities and duties granted or imposed by so much of the Act of 1807 as was not by the said Order repealed and so far as the same were not repugnant to or inconsistent with that Order or the Public Health Act 1848 or any byelaw made thereunder and provision was made that if the property so transferred should be insufficient to satisfy charges created by the said Trustees the deficiency should be charged on the general district rates levied in the parts and places which but for the said Order would or ought to have been chargeable with such deficiency and that all expenses which should be incurred by the local board under so much of the Act of 1807 as was not repealed by the said Order and which should not be defrayed out of the revenue received by the local board under the Act of 1807 should be defrayed out of the general or special district rates as the case might require:

And whereas by the Llanelly Harbour Act 1864 (in this Act called "the Act of 1864") the commissioners were incorporated and empowered to dredge the harbour to construct a new dock and other works and to levy dues for the use thereof:

And whereas by a Provisional Order under the Local Government Board Act 1868 confirmed by the Local Government Supplemental Act 1868 the district of the local board was extended:

And whereas by the Llanelly Harbour Act 1878 (in this Act called "the Act of 1878") the commissioners were reconstituted and were authorised to borrow with the consent of the local board fifty thousand pounds on the security of the harbour revenues and by way of collateral security the income of the public estates and it was provided by the said Act that if the harbour revenues should be insufficient for the repayment of the moneys so borrowed or the interest thereon the local board should after demand under the seal of the commissioners pay to their order the sum thereby demanded out of the income of the public estates and that if by reason of any such payment the said income should be insufficient to meet other charges upon the public estates the local board should make good such deficiency out of the revenue of their waterworks and if that

[10 EDW. 7 & *Llanelly Harbour Act*, 1910. [Ch. cxlv.]
1 GEO. 5.]

were insufficient then out of the general district rate of the said district so that the total net incomes of the public estates might if required be available for the payment of the principal moneys borrowed under the Act of 1878 and the interest thereon: A.D. 1910.

And whereas by the Llanelly Harbour Act 1888 (in this Act called "the Act of 1888") the local board were authorised to sell the public estates freed from the trusts of the Act of 1807 and all principal moneys raised on the security of the recited Acts but it was enacted that the purchase money paid to the local board on any such sale (in that and this Act called "public estates capital money") should while uninvested or unapplied and the investments thereof when invested be held on the same trusts as the public estates would have been held if not sold and that the income of the public estates capital money should be applied as the income of the public estates if not sold would have been applied and it was also enacted that in addition to the powers for securing the repayment of moneys borrowed by the commissioners under the Act of 1878 and the interest thereon the local board might if they thought fit charge by way of further collateral security the general district rates of their district with the repayment of such moneys and interest provided that the aggregate amount which might in any one year become payable in respect of any such charges should not exceed the amount which might in such year be produced by a general district rate of sixpence in the pound on the assessable value for that year of the property assessable to that rate and that such collateral security should cease on the expiration of fifty years from the first day of January one thousand eight hundred and ninety:

And whereas by the Llanelly Harbour Act 1896 and the Llanelly Harbour Act 1901 (in this Act called respectively "the Act of 1896" and "the Act of 1901") the commissioners were empowered with the consent of the successors of the local board the urban district council of Llanelly (in this Act called "the council") to borrow further moneys and to charge the moneys so borrowed on the harbour revenue and by way of collateral security on the income of the public estates and public estates capital money and the council were authorised by way of further collateral security to charge the repayment of the moneys so borrowed and the interest thereon on the general

A.D. 1910. district rate of the said urban district but so that the aggregate amount payable in any one year in respect of any loans to the commissioners under whatever Act raised should not exceed the amount which might in such year be produced by a general district rate of one shilling in the pound on the assessable value for that year of the property assessable to that rate and that such collateral security should cease at the expiration of sixty years from the first day of January one thousand eight hundred and ninety-seven :

And whereas the commissioners with the consent of the local board or the council have from time to time borrowed under the powers of the Acts of 1878 1896 and 1901 various sums which at the passing of the Act of 1904 hereinafter mentioned amounted to two hundred and twenty-five thousand seven hundred and eighty-seven pounds ten shillings and sevenpence of which sums amounting to two hundred and twenty thousand seven hundred and eighty-seven pounds ten shillings and sevenpence were advanced to the commissioners by the Governor and Company of the Bank of England (in this Act called "the Bank") and were under the provisions of the said Acts and the Act of 1888 charged upon the harbour revenues the harbour undertaking the income of the public estates and of the public estates capital money and (subject to the limitations contained in the Acts of 1896 and 1901) on the general district rate of the said district or some of them :

And whereas by the Llanelly Harbour Act 1904 (in this Act called "the Act of 1904") the title of the commissioners was changed to the Llanelly Harbour Trust (in this Act called "the Trust") and the constitution of the Trust was altered and the Trust were empowered to borrow further moneys including such sums as the Board of Trade might consider expedient for improving the harbour and facilitating the trade of the port and might sanction accordingly and it was provided that subject to the provisions of that Act the whole of the moneys borrowed from the Bank under the powers of the Act of 1904 and the Acts of 1878 1896 and 1901 should as from the thirtieth day of September one thousand nine hundred and four form one consolidated loan which together with the interest thereon should subject only to then existing loans and interest as to the sum of thirty thousand pounds borrowed or then to be borrowed under the Act of 1901 be a first charge upon the harbour

undertaking and all real and personal property belonging thereto and as to the moneys borrowed or then to be borrowed under the Acts of 1878 and 1896 and that Act be a first charge upon the harbour revenue and that the whole consolidated loan should further (subject as aforesaid) be a first charge upon the income of the public estates and of the public estates capital money and upon the general district rate leviable by the council provided that the aggregate amount which might in any one year become payable by the council out of the general district rate should not exceed the amount which might in such year be produced by a general district rate of two shillings in the pound on the assessable value for that year of property assessable to the general district rate and that such charge on the general district rate should cease at the expiration of sixty years from the first day of January one thousand eight hundred and ninety-seven or such earlier date as the moneys so secured should have been repaid to the Bank and that the interest on such consolidated loan should be at the rate of four per cent. per annum payable on the first day of January and the first day of July in each year and it was further provided that the Trust should forthwith after the expiration of five years from the twenty-ninth day of September one thousand nine hundred and four make provision to the satisfaction of the Board of Trade for paying off all moneys borrowed under the Act of 1904 and the Acts of 1878 1896 and 1901 within fifty-five years from the twenty-ninth day of September one thousand nine hundred and four:

And whereas the Act of 1904 provided for the appointment of two Trustees by the Bank and of a joint committee consisting of four Trustees of whom two should be the Trustees appointed by the Bank and conferred upon the joint committee the powers mentioned in the Act:

And whereas by an indenture dated the fourth day of December one thousand nine hundred and five and made between the Trust of the first part the council of the second part and the Bank of the third part which recited that the principal sum due to the Bank had been reduced to two hundred and twelve thousand two hundred and twenty-one pounds twelve shillings and twopence the Bank covenanted to advance to the Trust the further sums of eight thousand seven hundred and twenty-five pounds and eleven thousand pounds and (subject to certain

A.D. 1910. — conditions) the sum of twenty-four thousand pounds and the Trust covenanted to repay to the Bank the said sum of two hundred and twelve thousand two hundred and twenty-one pounds twelve shillings and twopence and any further sums advanced by the Bank as aforesaid with interest thereon at the rate of four per cent. per annum and with the consent of the council charged with payment to the Bank of the said principal sums and interest the harbour undertaking and revenues all real and personal property belonging to the harbour undertaking the income of the public estates and of the public estates capital money according to the tenor of the Act of 1904 and the council by way of further collateral security charged with the payment to the Bank of the said principal sums and interest the general district rate until the said principal sums and interest should be fully paid or until the expiration of sixty years from the first day of January one thousand eight hundred and ninety-seven whichever should first happen provided that the aggregate amount which might for any year become payable out of the said rate in respect of the principal moneys and interest thereby secured should not exceed the amount which might in such year be produced by a general district rate of two shillings in the pound on the assessable value in that year of property assessable to the general district rate:

And whereas the Bank advanced to the Trust the said sums of eight thousand seven hundred and twenty-five pounds and eleven thousand pounds and a sum of five thousand pounds on account of the said sum of twenty-four thousand pounds and there is now due to the Bank the principal sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence together with interest thereon at the rate of four pounds per cent. per annum from the thirtieth day of June one thousand nine hundred and nine :

And whereas the Board of Trade has sanctioned the borrowing by the Trust of further moneys to the extent of twelve thousand pounds for the purpose of forming a channel or waterway and constructing a spur wall and works for the improvement of the port and harbour under the powers of the said Acts but no such further moneys have yet been borrowed:

And whereas the revenues of the Trust together with the sums payable under the charges by way of collateral security are insufficient to discharge the interest payable on the out-

standing loans of the Trust and also to provide for the repayment of such loans in accordance with section 35 of the Act of 1904 and also to afford adequate security for further moneys which it is expedient the Trust should borrow for the purpose of improving the harbour: A.D. 1910.

And whereas the indenture set forth in the schedule to this Act has been entered into by the Trust the council and the Bank providing for a reduction in the rate of interest payable on the principal moneys now due to the Bank and the repayment of such principal moneys by instalments and for further advances by the Bank to the Trust up to forty thousand pounds in consideration of the charges intended to be created by the Trust and the council and it is expedient that the said indenture should be confirmed and made binding:

And whereas it is expedient that the other provisions hereinafter contained should be made:

And whereas an absolute majority of the whole number of the council at a meeting held on the eighteenth day of April one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in a local newspaper published and circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the eleventh day of July one thousand nine hundred and ten being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

A.D. 1910.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Llanelly Harbour Act 1910 and the Llanelly Harbour Acts 1858 to 1904 and this Act may be cited as the Llanelly Harbour Acts 1858 to 1910.

Interpreta-
tion.

2. In this Act—

“The Trust” means the Llanelly Harbour Trust;

“The council” means the urban district council for the district of Llanelly;

“The Bank” means the Governor and Company of the Bank of England;

“The scheduled indenture” means the indenture contained in the schedule to this Act.

Confirmation
of scheduled
indenture.

3. The scheduled indenture is hereby confirmed and made binding on the parties thereto and shall be carried into effect accordingly.

Sections 237 to
239 of Public
Health Act
1875 to apply
to scheduled
indenture.

4. The scheduled indenture shall be deemed to be a mortgage to which the provisions of sections 237 238 and 239 of the Public Health Act 1875 apply and the provisions of these sections shall apply accordingly.

Application
of harbour
revenues.

5. Before applying the harbour revenues in improving the harbour and works of the Trust as provided by section 36 (1) (d) of the Act of 1904 the Trust shall pay the half-yearly instalments payable by them under the scheduled indenture and the said section shall be read and have effect accordingly.

Repeal and
amendment
of provisions
of Act of
1904.

6.—(1) The following provisions of the Act of 1904 are hereby repealed (that is to say):—

So much of section 5 as provides that two Trustees shall be appointed by the mortgagees therein mentioned;

Section 6;

The proviso to section 15;

The proviso to section 18 (c);

Section 19 (1) (b);

The words "but this section shall not apply to a Trustee appointed by the mortgagees" in section 20; and Sections 24 and 25. A.D. 1910.

(2) The proviso to section 35 shall not apply to the moneys secured by the scheduled indenture.

7. The purposes for which the Trust may borrow with the sanction of the Board of Trade under section 32 of the Act of 1904 shall be deemed to include the payment of the costs referred to in the section of this Act the marginal note whereof is "Costs of Act and scheduled indenture" and any costs payable by the Trust to the Bank or the council under the provisions of the scheduled indenture and the payment of three thousand five hundred and ninety-four pounds nine shillings in respect of arrears of interest on moneys borrowed by the Trust. Extension of purposes for which Trust may borrow with sanction of Board of Trade.

8. The sums to be borrowed by the Trust with the sanction of the Board of Trade under section 32 of the Act of 1904 shall not exceed in the aggregate the sum of forty thousand pounds. Limitation of amount to be borrowed by Trust with sanction of Board of Trade.

9. All the costs charges and expenses preliminary to and incidental to the preparing applying for obtaining and passing of this Act including the costs of and incidental to the negotiation preparation and execution of the scheduled indenture shall be paid by the Trust out of the harbour revenues or out of moneys to be borrowed for that purpose under the Act of 1904 as amended by this Act. Costs of Act and scheduled indenture.

A.D. 1910.

The SCHEDULE referred to in the foregoing Act.

Stamp.

Twenty-six
pounds five
shillings.

THIS INDENTURE made the twelfth day of May one thousand nine hundred and ten between the LLANELLY HARBOUR TRUST (hereinafter called "the Trust") of the first part the URBAN DISTRICT COUNCIL FOR THE DISTRICT OF LLANELLY (hereinafter called "the council") of the second part and the GOVERNOR AND COMPANY OF THE BANK OF ENGLAND (hereinafter called "the Bank") of the third part.

WHEREAS under the provisions of the Llanelly Harbour Acts 1858 to 1904 or some of those Acts the Trust have with the consent of the council borrowed from the Bank the sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence and the repayment of such sum with interest at the rate of four per cent. per annum is secured by an indenture of mortgage dated the fourth day of December one thousand nine hundred and five and made between the same parties as are parties to these presents and in the same order and also by certain mortgages which are specified in the first and third parts of the schedule to the said indenture of mortgage of the fourth day of December one thousand nine hundred and five which indenture and scheduled mortgages are hereinafter when collectively referred to called the principal indenture:

And whereas all interest due and payable to the Bank under the principal indenture has been duly paid and satisfied up to the thirtieth day of June one thousand nine hundred and nine but the Trust have as yet made no provision for paying off the money so borrowed in accordance with section 35 of the Llanelly Harbour Act 1904:

And whereas the Bank shortly after the thirtieth day of September one thousand nine hundred and nine called upon the Trust to repay the said principal sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence and the interest accrued due thereon:

And whereas on the twenty-fourth day of November one thousand nine hundred and nine there was due and owing to the Bank from the Trust the said sum of two hundred and thirty-six thousand nine

hundred and forty-six pounds twelve shillings and twopence and three thousand five hundred and ninety-four pounds nine shillings in respect of interest less income tax thereon: A.D. 1910.

And whereas at the request of the Trust and the council the Bank have agreed to advance to the Trust such further sum or sums as the Trust shall require up to forty thousand pounds and to accept payment of the said sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence and any further sum or sums so advanced to the Trust with interest thereon at the rates hereinafter specified by the instalments and in the manner hereinafter mentioned upon the due payment of the same being further secured in manner hereinafter provided:

Now these presents witness as follows:—

1. Subject to the payment by the Trust to the Bank of all interest which shall be in arrear at the date when this indenture is confirmed by Parliament (such interest to be at the fixed rate of four per cent. per annum and not under any circumstances to be reducible) and subject to the due performance at all times by the Trust and the council respectively of their respective obligations under the principal indenture as modified by these presents and under these presents the Bank will advance to the Trust such sum or sums of money not exceeding in the aggregate forty thousand pounds as the Trust are or may be authorised by the Board of Trade under section 32 of the Llanelly Harbour Act 1904 as amended by the Act hereinafter referred to as intended (if so amended) to borrow and as the Trust with the consent under seal of the council shall in writing require such advances to be made at such time or times as the Trust with the like consent shall appoint. Provided always and it shall be an express condition of any such advance by the Bank that the Trust shall pay to the Bank all interest in arrear at the date when this indenture shall be so confirmed such interest to be at the fixed rate aforesaid and the Bank may retain such interest out of the first sum so advanced. Provided further that the Bank shall not be bound to make any advance to the Trust while any instalment under clause 2 hereof is in arrear.

2. The Trust hereby covenant with the Bank to pay to them the said sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence with interest thereon from the said twenty-fourth day of November one thousand nine hundred and nine at the rate of four per cent. per annum by one hundred and ten equal half-yearly instalments of five thousand three hundred and forty-four pounds one shilling and fourpence each of principal and interest combined whereof the first instalment is to be paid on the twenty-fourth day of

A.D. 1910. May one thousand nine hundred and ten and a like instalment on every subsequent twenty-fourth day of November and twenty-fourth day of May up to and including the twenty-fourth day of May one thousand nine hundred and sixty-four the last half-yearly instalment being paid on the twenty-ninth day of September one thousand nine hundred and sixty-four and also to pay to the Bank each sum of money advanced by the Bank to the Trust under clause 1 hereof with interest thereon at the rate of five pounds per cent. per annum by fifty-five equal half-yearly instalments of principal and interest combined such instalment to be calculated after the rate of three pounds seven shillings and threepence three farthings for every one hundred pounds included in the sum so advanced and to be paid on the twenty-fourth day of May and twenty-fourth day of November the first instalment to be paid on the twenty-fourth day of May or twenty-fourth day of November which shall first happen next after the date on which the sum shall be so advanced provided that if within one calendar month after any day on which an instalment of five thousand three hundred and forty-four pounds one shilling and fourpence shall become payable to the Bank under this clause the Trust shall pay to the Bank the sum of four thousand four hundred and eleven pounds nineteen shillings and threepence being an instalment of the said principal sum of two hundred and thirty-six thousand nine hundred and forty-six pounds twelve shillings and twopence and interest combined such interest being calculated at the rate of three pounds per centum per annum the Bank will accept such sum of four thousand four hundred and eleven pounds nineteen shillings and threepence in full satisfaction of the said instalment of five thousand three hundred and forty-four pounds one shilling and fourpence and if within one calendar month after any day on which an instalment shall become payable to the Bank in respect of a sum advanced by them under clause 1 hereof the Trust shall pay to the Bank a sum calculated after the rate of three pounds and threepence halfpenny for every one hundred pounds included in the sum so advanced (such rate including interest at the rate of four pounds per centum per annum) the Bank will accept the said sum calculated after the said rate of three pounds and threepence halfpenny for every one hundred pounds in full satisfaction of the instalment calculated after the rate of three pounds seven shillings and threepence three farthings for every such one hundred pounds hereinbefore made payable Provided always that the provision for reduction of the rate of interest on punctual payment in this clause contained shall not apply to any interest accrued (whether due or not) up to the date when this indenture shall be confirmed by Parliament.

3. All instalments of principal and interest payable hereunder shall be paid to the Bank at its head office in the city of London.

4. The Trust hereby charge with payment to the Bank of the said instalments of principal and interest by clause 2 hereof covenanted to be paid the Harbour undertaking authorised by the Llanelly Harbour Acts 1858 to 1904 and all real and personal property belonging thereto the harbour revenues "the income of public estates" and "of the public estates capital money" as defined by the Llanelly Harbour Act 1904 but subject (so far as the same premises are subject thereto) to a certain indenture of mortgage dated the seventh day of October one thousand nine hundred and one in favour of Lloyds Bank for securing the repayment by the Trust of the sum of five thousand pounds with interest The charge by this clause given is in addition and subject and without prejudice to the charge created by the principal indenture and by section 33 of the Llanelly Harbour Act 1904 by virtue of which the principal moneys and interest thereby secured are constituted a first charge as in the principal indenture and said section mentioned and upon the general district rate not exceeding two shillings in the pound as in the said section is provided. A.D. 1910.

5. The council hereby by way of collateral security charge with payment to the Bank of the said instalments of principal and interest by clause 2 hereof covenanted to be paid the general district rate leviable by the council for the district of the borough of Llanelly The charge by this clause given is subject and without prejudice to the first charge on the said rate created by the principal indenture and the said section 33 of the Llanelly Harbour Act 1904 but shall not be limited to a rate not exceeding two shillings in the pound and shall rank pari passu with all other charges on the general district rate present and future but so that it shall not be lawful for the council to create hereafter any charge on the said rate having priority over the charge by this clause given.

6. The Trust will from time to time make and enforce such demands upon the council as they are or shall be by the Llanelly Harbour Acts 1858 to 1904 or the said intended or any other Act empowered to make and the Trust and the council respectively will exercise all their statutory powers accordingly and will make and enforce all necessary rates and collection of rates rents tolls and other moneys and will apply the proceeds thereof in accordance with the provisions of these presents.

7. Notwithstanding anything in these presents contained all the provisions of the principal indenture shall subject to the variations hereby made be deemed to be kept alive and in particular nothing herein contained shall be deemed to prejudice or affect the first charge on the general district rate by the principal indenture and the said section 33 of the said Llanelly Harbour Act 1904 given.

A.D. 1910.

8. The council and the Trust or one of them shall apply in the present or next ensuing session of Parliament for a Bill for an Act to confirm this indenture and to repeal the following provisions of the Llanelly Harbour Act 1904 viz. so much of section 5 as enables the Bank or their assigns to appoint two members of the Trust section 6 the proviso to section 15 the proviso to section 18 (c) section 19 (1) (b) the words "but this section shall not apply to a Trustee appointed by the mortgagees" in section 20 sections 24 and 25 also the proviso to section 35 so far as the same relates to the moneys hereby secured and also to empower the Trust to pay the costs of the said Bill and of this agreement and any costs payable hereunder out of the moneys to be advanced by the Bank under clause (1) hereof Each of the parties hereto shall support such Bill and use their best endeavours to procure it to be passed into law.

9. The Trust shall pay to the Bank all legal expenses which the Bank has incurred through the default of the Trust in paying the principal and interest secured by the principal indenture and shall pay to the Bank and the council all legal expenses which the Bank and the council respectively have incurred or may incur in connection with the negotiation for and preparation and execution of this agreement or in promoting or watching the Bill for the said intended Act and all such expenses shall be paid to the Bank and the council respectively out of the first advance made by the Bank to the Trust under these presents.

10. This indenture is conditional upon the same being confirmed by Parliament in the present or next ensuing session of Parliament and is subject to all such alterations as Parliament shall think fit to make therein but if the Committee of either House on the Bill make any material alteration in any of the provisions of this indenture any of the parties hereto may at any time before the Bill shall be passed by the House of Parliament in which such alteration shall be so made by notice to the others of them withdraw from this agreement and thereupon the same shall become null and void.

In witness whereof each of the parties hath caused its common seal to be hereunto affixed the day and year first above written.

Sealed by order of the court of directors
of the Governor and Company of the
Bank of England in the presence of

ROBT. L. NEWMAN
BRIEN COCKAYNE
CECIL LUBBOCK

} Directors.

CHARLES E. EDLMANN Secretary.

A.D. 1910.

The common seal of the Llanelly }
Harbour Trust was hereunto affixed }
in the presence of
D. JAMES DAVIES Chairman.
HENRY W. SPOWART Clerk.

The common seal of the Llanelly }
Urban District Council was here- }
unto affixed in the presence of
EDWARD T. JONES Chairman.
HENRY W. SPOWART Clerk.

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